

**Before the
FEDERAL MARITIME COMMISSION**

Docket No. 24-07

Impact Products, LLC *et al.*, Complainants v. CMA CGM S.A., Respondent

JOINT MOTION TO EXTEND DISCOVERY DEADLINES

Complainants Impact Products, LLC and Safety Zone, LLC (“Complainants”), and Respondent CMA CGM S.A. (“CMA” or “Respondent”) (collectively with Complainants, the “Parties”) hereby jointly move, pursuant to 46 C.F.R. § 502.141(l), to extend the close of discovery in order for the Parties to serve expert opinions and to complete depositions, and in support thereof, state as follows:

1. On March 25, 2024, the ALJ entered a scheduling order [Docket No. 10] with the following deadlines:

Task	Deadline
Service of Initial Discovery Requests	March 29, 2024
Last Date to Serve Discovery Requests	July 3, 2024
Close of All Discovery	August 5, 2024
Complainants’ Brief, Proposed Findings of Fact, and Appendix	September 4, 2024
Respondent’s Opposition Brief, Response to Proposed Findings of Fact, Proposed Findings of Fact, and Appendix	October 19, 2024
Complainants’ Reply Brief and Responses to Proposed Findings of Fact	November 2, 2024

2. To date, the Parties have exchanged Rule 502.141(b) initial disclosures, and propounded written discovery.

3. On April 29, 2024, the Respondent served answers and objections to the Complainants' discovery requests, along with an initial document production, followed by a supplemental document production on July 31, 2024. The Complainants also provided their initial document production to the Respondent and plan to serve their responses to the Respondent's discovery requests, which were served on July 3, 2024, by August 2, 2024.

4. Due to ongoing written discovery and document production, the Parties have not yet served their expert opinions or completed depositions, and they do not anticipate being able to do so by the close of discovery on August 5, 2024.

5. As a result, the Parties request an extension of the ALJ-ordered discovery deadlines to complete depositions and to serve their respective expert reports/opinions. This proposed extension will not affect the remaining Scheduling Order deadlines for the Parties' briefs, proposed findings of fact, or appendices. The Parties' request is as follows:

Task	Deadline
Complainants Serves Expert Opinion	August 12, 2024
Respondent Serves Rebuttal Expert Opinion	August 26, 2024
Complete Depositions of Fact and Expert Witnesses	August 30, 2024
Complainants' Brief, Proposed Findings of Fact, and Appendix	September 4, 2024
Respondent's Opposition Brief, Response to Proposed Findings of Fact, Proposed Findings of Fact, and Appendix	October 19, 2024
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6. Pursuant to 46 CFR § 502.141(h), counsel for Complainants conferred with counsel for Respondent, and both Parties have agreed to meet and confer to define the scope of inquiry for the upcoming depositions as well as to limit the number of potential deponents.

7. This Motion is not meant for purposes of delay, but to allow the Parties to complete the necessary discovery at issue in this proceeding.

WHEREFORE, Complainants Impact Products, LLC and Safety Zone, LLC, and Respondent CMA CGM S.A., respectfully request that the following revised schedule be adopted in this action:

- (a) Complainants to serve their expert opinion on or before **August 12, 2024**;
- (b) Respondent to serve its rebuttal expert opinion on or before **August 26, 2024**;
- (c) The Parties complete depositions of fact witnesses on or before **August 30, 2024**; and
- (d) All other scheduled deadlines will remain the same.

Dated: August 2, 2024

Respectfully jointly submitted,

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